

Deepthi vs Sajeesh on 20 May, 2016

Author: K.Harilal

Bench: K.Harilal

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE K.HARILAL

FRIDAY, THE 20TH DAY OF MAY 2016/30TH VAISAKHA, 1938

Tr.P(C).No. 246 of 2016 ()

(TRANSFER OP 150/2016 of FAMILY COURT,VADAKARA TO FAMILY COURT,
KOTTARAKKARA)

PETITIONER:

DEEPTHI
D/O.GOPALAN, HONEY NIVAS,
CHERUVAKKAL.P.O., ELAMADU VILLAGE,
KOTTARAKKARA, KOLLAM.

BY ADV. SRI.B.MOHANLAL

RESPONDENT:

SAJEESH
S/O.GANGADHARAN, KOOTTIKANDI HOUSE,
VAKAYAD.P.O., KOOTTALI SOUTH, BALUSSERY VIA,
KOILANDY TALUK, KOZHIKKODE DISTRICT 673001.

THIS TRANSFER PETITION (CIVIL) HAVING COME UP FOR ADMISSION
ON 20-05-2016, THE COURT ON THE SAME DAY PASSED THE FOLLOWING:

Tr.P(C)No.246/2016

APPENDIX

PETITIONER'S ANNEXURES:

ANNEXURE-A1 TRUE COPY OF PLAINT OP NO.349/2015 FILED BY THE
PETITIONER BEFORE THE FAMILY COURT, KOTTARAKKARA

ANNEXURE-A2 TRUE COPY OF THE NOTICE IN OP NO.150/2016 FILED BY THE
RESPONDENT BEFORE THE FAMILY COURT, VADAKARA TO THE
PETITIONER.

RESPONDENTS' ANNEXURES:

NIL

/TRUE COPY/

VPS

PS TO JUDGE

K.HARILAL, J.

Tr.P.(C) No.246 of 2016

Dated this the 20th day of May, 2016

O R D E R

The petitioner is the wife of the respondent. Due to difference of opinion, the matrimonial relationship subsequently got strained and now the respondent is residing separately. The petitioner filed O.P.(HMA) No.349 of 2015 before the Family Court, Kottarakkara under section 13(i-a) and (i-b) of the Hindu Marriage Act read with section 7(1) of the Family Court Act for dissolution of marriage between the petitioner and the respondent. The respondent entered appearance in that original petition. Later, the respondent filed O.P.150 of 2016 before the Family Court, Vadakara against the petitioner seeking a decree directing the petitioner to return back the gold ornaments, mobile phone, bike, identity card, driving licence, pass book, cheque leaves etc.,. The petitioner entered appearance in that original petition.

2. It is the case of the petitioner that she is permanently residing at Cheruvakkal, Kollam and she is suffering from severe illness. So she is not in a position to travel more than 400 Kms to reach Vadakara so as to appear before the Family Court and if all the cases are tried jointly, it will be convenient for both parties. It is also stated that the petitioner is not employed and she wants the aid of another person to accompany her, for travelling to Vadakara. Hence the petitioner prays for an order transferring O.P.No.150 of 2016 on the files of Family Court, Vadakara to Family Court, Kottarakkara.

3. Heard the learned counsel for the petitioner.

4. Though, notice had been properly served to the respondent, he has not chosen to enter appearance in this transfer petition. It is not disputed that O.P.(HMA) No.349 of 2015 is pending before the Family Court, Kottarakkara and the petitioner had preferred the said original petition against the respondent at first. Thereafter the respondent filed O.P.No.150 of 2016 against the petitioner before the Family Court, Vadakara. Indisputably, the petitioner has to travel more than 350 Kms to reach Vadakara as to make appearance before the Family Court. The grievance of the petitioner that she wants the aid of somebody else to accompany her so as to appear before the Family Court, Vadakara requires to be considered positively in her favour, in the light of the decision in Amita Shah Vs. Virender Lal Shah (2003 (10) SCC 609) and Roopali Saxena Vs. Amit Saxena (2004 (13) SCC 494).

In the above view of the matter, O.P.No.150 of 2016 on the files of Family Court, Vadakara will stand transferred to Family Court, Kottarakkara. The Family Court, Kottarakkara shall issue notice to both parties intimating the date of appearance.

K.HARILAL, (JUDGE) vps